IN THE NATIONAL COMPANY LAW TRIBUNAL, DIVISION BENCH - I, CHENNAI

Under Sections 230 to 232 of the Companies Act, 2013

In the matter of *Scheme of Amalgamation* of

CP/118/CAA/2018 in TCA(HC)/141/CAA/2017

KAMADGIRI INDUSTRIES LIMITED
CIN: U02001TZ1992PLC003856
Registered Office: No.1, DPF Lane
Bharathiar Road, Pappanaickenpalayam,
Coimbatore – 641 037

...Petitioner/ First Transferor Company

Along with

CP/119/CAA/2018 in TCA(HC)/142/CAA/2017

RAMVILAS INDUSTRIES LIMITED
CIN: U17200PY2002PLC001626
Registered Office: No.41,
Thulukanathamman Koil Street,
Thiruvalluvar Nagar,
Pondicherry- 605 003

...Petitioner/ Second Transferor Company

Along with

CP/120/CAA/2018 in TCA(HC)/143/CAA/2017

VEERAA SPINNING MILLS PRIVATE LIMITED
CIN: U17111TZ1990PTC002904
Registered Office: No.22,
Netaji Road, Thavittupalayam,
Anthiyur – 638 501

...Petitioner/ Third Transferor Company

Along with

CP/121/CAA/2018 in TCA(HC)/144/CAA/2017

SRINIDHI INDUSTRIES LIMITED
CIN: U17111TZ1999PLC008802
Registered Office: No.159,
Krishna Talkies Road,
Erode – 638 003

... Petitioner/ Transferee Company

And

Their Respective Shareholders

Order pronounced on 31st August 2023

CORAM

JUSTICE RAMALINGAM SUDHAKAR, PRESIDENT
SAMEER KAKAR, MEMBER (TECHNICAL)

For Applicant(s)	*: N.P.VijayKumar, Advocate.*
For RD	*: Avinash Krishnan Ravi, Advocate*
For Official Liquidator	*: Palani. Authorized Representative*

COMMON O R D E R

Per: **SAMEER KAKAR, MEMBER (TECHNICAL)**

The hearing of this Company Petitions has been conducted through video conferencing platform.

2. The present Company Petition has been filed by the Applicant Companies above named for the purpose of the approval of the Scheme of Amalgamation of KAMADGIRI INDUSTRIES LIMITED (for brevity "First Transferor Company"), RAMVILAS INDUSTRIES LIMITED (for brevity "Second Transferor Company"), VEERAA SPINNING MILLS PRIVATE

LIMITED (for brevity "Third Transferor Company") and SRINIDHI INDUSTRIES LIMITED (for brevity "Transferee Company) under section 230-232 of Companies Act, 2013, and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 (for brevity 'the Rules') (hereinafter referred to as the 'SCHEME') pursuant to the Scheme proposed by the Applicant Companies and the said Scheme is also annexed at *"Annexure D* of the Transferor Companies (1 to 3) and Transferee Company to the typed set filed along with the Application.

3. 1ST MOTION APPLICATION – IN BRIEF

3.1. The Transferor Company and the Transferee Company have filed the First Motion Application vide TCA(HC)/141-144/CAA/2017 seeking reliefs as follows:

	EQUITY SHAREHOLDERS	SECURED CREDITORS	UNSECURED CREDITORS
TRANSFEROR COMPANY -1	To order for Meeting	NIL	To dispense with
TRANSFEROR COMPANY -2	To order for Meeting	NIL	To dispense with
TRANSFEROR COMPANY -3	To order for Meeting	NIL	To dispense with
TRANSFEREE COMPANY	To order for Meeting	To dispense with	To order for Meeting

3.2. Based on such application moved under Sections 230-232 of the Companies Act, 2013; directions were issued by this Tribunal, vide order dated ***05.10.2017***, to dispense the meetings of the Secured Creditors of the Transferee Company, dispensed the meetings of the Unsecured Creditors of the Transferor Companies (1 to 3) and this Tribunal directed to convene meetings of the Equity Shareholders of the Transferor Company 1 on 18.11.2017 at 11.30 A.M. at Race Course Mansion, Second Floor, 8/1M, Race Course, (above Kongu Masala Restaurant), Near Thomas Park Bus Stop, Coimbatore – 641 018, Equity Shareholders of the Transferor Company 2 on 16.11.2017 at 3.30 P.M. at Sri Saraswathi Kalai Koodam, No.30, Amman Kovil Street, Oreleanpet, Pondicherry – 605 005, Equity Shareholders of the Transferor Company 3 and Transferee Company on 17.11.2017 at 3.30 P.M. and 12.30.P.M. respectively at No.108, Mosikeeranar Street, First Floor, Erode – 638 003 and Unsecured Creditors of the Transferee Company on 17.11.2017 at 11:00 A.M. at No.108, Mosikeeranar Street, First Floor, Erode – 638 003.

3.3. Accordingly, the Tribunal has appointed Mr.V.V.Venkateshwaran, Chartered Accountant as Chairperson

for the above said meetings. Subsequently, the second motion petition was filed before this Tribunal by the petitioner companies on *18.12.2017* for sanction of the Scheme of Amalgamation by this Tribunal.

3.4. The Chairperson has submitted his Report on the above said meetings on *24th November, 2017* with the Tribunal. From the Chairperson's report, it is observed that the Equity shareholders of the Transferor Companies (1 to 3) and Transferee Company and Unsecured Creditors of the Transferee Company and had consented in favour of the Scheme. The said Chairperson's report is annexed at *Annexure I* in respect of the Transferor Companies (1 to 3) and *Annexures H &I* in respect of the Transferee Company to the typed set filed along with the Petition.

4. RATIONALE OF THE SCHEME

4.1. The Rational for the Scheme as envisaged under the Scheme of Amalgamation appended at *Annexure D* of the Transferor (1 to 3) and Transferee Company typeset is extracted hereunder:

4.2. The Amalgamation of Kamadgiri Industries Limited, Ramvilas Industries Limited and Veeraa Spinning Mills Private Limited with Srinidhi Industries Limited is to reduce the cost of operation of Transferor Companies. The amalgamated Company will have the benefit of the combined reserves, assets and cash flows of all the companies. The combined resources of the amalgamated Company will be conducive to continue its business activity with greater efficiency and economically. The merger of the Companies will result in greater cost benefits and economies, which will accrue to the amalgamated company. The arrangement under the Scheme will be conducive to better and more efficient and economical control and conduct of the Companies. The merger of the Transferor Companies and Transferee Company will result in following distinctive advantage:

a) Reducing multiple layer of inefficiencies;

b) Higher Net worth of the combined entity;

c) Administrative convenience;

d) Operational synergies; and

e) Cost reduction.

5. In the second motion application filed by the Applicant Companies, this Tribunal directed the Applicant Companies to issue

notice to the Statutory / Regulatory Authorities viz. (i) Regional Director (Southern Region), Ministry of Corporate Affairs (MCA) (ii) Registrar of Companies, Coimbatore and Pondicherry, MCA (iii) Official Liquidator (iv) the Income Tax Department, and other sectoral regulators, who may govern the working of the respective companies, as well as for paper publication to be made in "The New Indian Express", English (Coimbatore Edition) and "Dina Mani" Tamil (Coimbatore Edition).

6. In compliance to the said directions issued by this Tribunal, the Applicant Companies have filed an affidavit of service before the Registry of this Tribunal on ***24.11.2017*** in ***SR No. 5260*** and a perusal of the same discloses that the Applicant Companies have effected paper publications as directed by the Tribunal in the "The New Indian Express" (Coimbatore Edition) in English and "Dina Mani" (Coimbatore Edition) in Tamil on 17.11.2017. It is also seen that notices have been also served to (i) Regional Director, Southern Region, Chennai on 18.11.2017 and 17.11.2017 respectively, (ii) Registrar of Companies Coimbatore and Puducherry on 18.11.2017, (iii) Official Liquidator on 18.11.2017 and 17.11.2017 respectively and (iv) Income Tax Department on 18.11.2017 and the proof of the same by way of affidavits have been enclosed with the separate typed set. Pursuant to the service of notice of the petition the following statutory authorities have responded as follows:-

STATUTORY AUTHORITIES

7. REGIONAL DIRECTOR

7.1. The Regional Director, Southern Region *(hereinafter referred to as 'RD')* Chennai to whom the notice was issued in the first motion itself, has filed his Report before this Tribunal on ***06.04.2018*** in ***S.R.No.1273*** and has stated in para 7 of the report that Clause 7 of Part II of the Scheme provides for the protection of the interest of the employees of the Transferor Companies.

7.2. It is averred in para 9 of the RD report that as per clause 1(a) of Part III of the scheme has stated that the authorized capital of the transferor companies will be merged with the authorized capital of the transferee company. The transferee company may be directed to file the amended MOA and AOA with the ROC, Coimbatore for her records. In the said clause of the scheme it is stated that the transferee company shall not be required to pay any fee/stamp duty for its increased authorized share capital. According to the RD, the said clause is not correct. As provided under clause (i) to Sub section (3) of Section 232 of the Companies Act, 2013 the transferee company has to pay the fees, if any, for the enhanced authorized capital subsequent to the

amalgamation after setting off the fees paid by the transferor companies. In the light of the above the transferee company may be directed to comply with the above provisions of the Act by making an application with the ROC, Coimbatore for payment of the balance fees as applicable under the provisions of the Act and rules framed thereunder.

7.3. It is further averred in para 10 of the RD Report that as per Section 9 (c), Part II of the scheme it is stated that the excess of assets over the liabilities after considering issue of share capital would be credited to Amalgamation Reserve of the transferee company, which shall be revenue reserve for all purposes. The designation of the amalgamation reserve as Revenue reserve is not correct as this reserve could not be used for the purposes of distribution of dividend and for issue bonus shares etc., Hence the transferee company may be directed to treat the amalgamation reserve in the nature of Capital Reserve and not as Revenue.

7.4. It is further averred in para 11 of the RD report that a perusal of the result of the meeting of the shareholders filed by the companies revealed that the amalgamation was objected to by Shri Rajendra Kumar Kanodia and his family members who are

holding certain percentage of shares in the 1st and 3rd transferor companies and also in the transferee company. The companies were asked about the dispute along with the percentage of shareholding pattern Pre and Post amalgamation to be held by both the groups. The companies have submitted the details of the dispute and also the pre and post amalgamation shareholding pattern which will be held by both the groups. The companies further informed that the said shareholder has filed petitions before the then Hon'ble Company Law Board in CP No. 30, 31, 378 38 of 2012 under sections 397/398 of the Companies Act, 1956 which was finally dismissed for default on 22.1.2015 and 25.8.2015. The companies have also informed that the same shareholder has filed petitions in CP Nos. 59 and 60 of 2017 under sections 59, 241 and 242 of the Companies Act, 2013 seeking almost the same relief. The companies have also informed that they have filed their reply in the month of January 2018 and the same is pending before this Tribunal. The companies have further informed that there is no interim order passed by this Tribunal impeding the scheme of amalgamation.

7.5. It is further averred in para 12 of the RD Report that a perusal of the result of the meeting of the shareholders of the applicant companies filed by the Chairman of the Meetings it is revealed that in respect of 1st and 3rd transferor companies and the transferee company wherein the resolution approving the scheme of amalgamation was passed in the general meeting as provided u/s 391(2) of the Act. In the said meetings the objector group was also present in person and/or through proxy and voted against the resolution. In respect of the 2nd Transferor company the objector group it appears is not holding any shares. Further if the Petition filed by the objector group in CP 59 and 60 of 2017 before this Tribunal is admitted by this Tribunal the shareholding pattern will be reverted in favour of the objector and his group. In the light of the above it is submitted that the pendency of the above petitions of the objector and his group members may not stand in the way of this scheme of amalgamation.

7.6. It is further averred in para 12 of the RD Report that in Part II, clause 2 of the scheme provides for change of object of the transferee company and the transferee company may be directed to file the amended MoA and AOA with ROC, Coimbatore for her records.

7.7. Further it is averred in para 13 of the RD report that the applicant Transferor Companies (1 to 3) seek dissolution without winding up.

7.8. It is further observed that as per para 8 of the RD report wherein it has been stated that as per the Report of the RoC, Coimbatore and Puducherry, all the Applicant Companies involved in this scheme of amalgamation are regular in filing their statutory returns and has reported that there are no prosecution / complaint/ inspection or investigation pending against the Applicant Companies.

7.9. Thus, after examining the Scheme, except the observations made in para 9 and 10 of the RD Report, the Regional Director in their Report has stated that they have decided not to make any objection to the Scheme.

7.10. In response to the observations made in Para 9 of the RD Report that the Director of the Petitioner Company have filed a Reply Affidavit dated 30.07.2018 wherein it is stated in para 5 of the reply affidavit that the undertaking to remit the difference of

fees, if any, for the enhanced authorised capital pursuant to the said Scheme and to file the amended MoA and AoA with the RoC, Chennai effecting the revision in the Authorized Share Capital of the Transferee Company.

7.11. With respect to the observation made in para 9 of the RD Report wherein it was stated in para 5 (c) of the reply affidavit that as per Para 35 of Accounting Standard - 14, under pooling of interest method, the difference between the amount recorded as share capital issued and amount of share capital of the Transferor Company should be adjusted in reserves. The Accounting Standard is silent on whether it is a capital reserve or revenue reserve. The treatment of Amalgamation reserve stipulated in the Scheme as Capital reserve as suggested by the Regional Director is in conformity with the accounting standards prescribed under section 133 of the Companies Act, 2013 and **the Petitioner Company has undertaken to treat the reserve as Capital Reserve.**

8. OFFICIAL LIQUIDATOR

8.1. In relation to the Official Liquidator, *(hereinafter referred to as 'OL')* to whom the notice was issued has filed the Report before this Tribunal on ***23.02.2018*** in ***S.R.No.663*** and has

stated that they have appointed M/s. Srihari & Co., Chartered Accountants from the panel maintained by their office to verify into the affairs of the Transferor Companies.

8.2. In para 6 of the OL Report, it was stated that the Chartered Accountants have reviewed broadly the Profit and Loss Account, Balance Sheet, other relevant books and records of the Transferor Companies. The Transferor Companies closes their books of accounts every year on 31st March. The accounts of the First and Second Transferor Companies have been audited by M/s. D.K. Jain & Co., Chartered Accountants and the accounts of the Third Transferor Company have been audited by M/s. N.C. Rajagopal & Co., Chartered Accountants and there were no qualifications given by the auditors in case of all the three Transferor Companies. Further, it is reported by M/s. Srihari & Co., Chartered Accountants that all the statutory registers, books of accounts and records maintained by the Transferor Companies were also scrutinized and found that they have maintained proper books of accounts and written up in accordance with normally accepted accounting principles.

8.3. Further in para 7 of the OL Report, it was stated that the Chartered Accountants have scrutinized the various records maintained online at the office of the Registrar of Companies, Chennai relating to the Transferor Companies. It is also observed from the registers maintained with the Registrar of Companies and that the Transferor Companies have filed all the returns and no cases were pending against the Transferor Companies or any of its Directors / Officers. The Transferor Companies are regular in filing Income Tax returns and no case was pending against the Transferor Companies and there are no tax arrears. The Transferor Companies have no liability with respect to Employees Provident Fund and Employees State Insurance contribution. The Transferor Companies have never issued dividends in the past. Hence, the question of commenting on unclaimed dividends, unpaid dividends or the compliances needed under Section 205(A) of the Companies Act, 1956 does not arise.

8.4. Further in para 7 of the OL Report, the Chartered Accountants stated that on scrutiny of the registers maintained with the Registrar of Companies it is observed that the First Transferor Company, a charge. against a loan taken from Federal Bank, amounting to Rs.75,00,000/- created on 04/10/2005, still

remains open against the company. However, the company has produced a No Dues Certificate in respect of the said charge. Further, that on scrutiny of the registers maintained with the Registrar of Companies it is observed that the Third Transferor Company, a charge amounting to Rs.14,30,00,000/- created on 29/07/2010, against a liability taken by M/s. Srinidhi Industries Limited, which was later modified on 03/03/2017, still remains open against the company. Further, that they have verified the documents of all the three Transferor Companies, it is observed that one of the members of M/s. Kamadgiri Industries Limited and M/s. Veeraa Spinning Mills Private Limited, Mr. Rajendra Kumar Kanodia has submitted a letter to the chairman dated 18/11/2017 and 17/11/2017 respectively, standing against the decision of amalgamation of the company. Further, it is verified the Independent Auditor's Report on the Financial Statements of M/s. Kamadgiri Industries Limited, it is observed that the Loans & Advances, and Trade Receivables that have been shown in the Balance Sheet, have not been considered for the purpose of valuation of shares of the company.

8.5. Further in Para 9 of the OL report that the business of the Transferor Companies, have not been conducted with a view to defraud the Creditors of the Transferor Companies or for any fraudulent purpose which would attract the provisions of Section 542/543 of the Companies Act, 1956. Based on the above observations the Chartered Accountants are of the opinion that the affairs of the Transferor Companies Viz., M/s. Kamadgiri Industries Limited. M/s. Ramvilas Industries Limited and M/s. Veeraa Spinning Mills Private Limited have not been conducted in a manner prejudicial to the interest of its members or the General Public.

8.6. From the above observations made by the Chartered Accountant, the Official Liquidator sought to take on record and consider the report of the Chartered Accountant and has also sought to fix the remuneration payable to the Auditor who has investigated into the affairs of Transferor Company. In this regard, this Tribunal hereby directs the Transferor Companies(1 to 3) jointly to pay a sum of ***Rs.75,000/- + GST (Rupees Seventy Five Thousand only Plus GST)*** to the Official Liquidator for the

payment of fees payable towards the Auditor who has investigated into the affairs of the Transferor Companies (1 to 3).

9. INCOME TAX DEPARTMENT:

9.1. Despite notice having been served on 18.11.2017 and paper publication made on 17.11.2017 in The New Indian Express (Coimbatore Edition) in English and Dina Mani (Coimbatore Edition) in Tamil, there is no representation from the other statutory Authorities viz, Department of Income Tax. Under such circumstances this Tribunal in terms of Section 230(5) of the Companies Act, 2013 presumes that the Department of Income Tax does not have any objection to the sanction of the Scheme.

9.2. Further it is relevant to discuss that in Company Petition CAA-284/ND/2018 vide Order dated 12.11.2018, the NCLT New Delhi has made the following observations with regard to the right of the IT Department in the Scheme of Amalgamation,

"taking into consideration the clauses contained in the Scheme in relation to liability to tax and also as insisted upon by the Income Tax and in terms of the decision in ***RE: Vodafone Essar Gujarat Limited v. Department of Income Tax (2013)353 ITR 222 (Guj)*** *and the same being also affirmed by the Hon'ble Supreme Court and as reported in* ***(2016) 66 taxmann.com.374(SC)*** *from which it is seen that at the time*

of declining the SLPs filed by the revenue, however stating to the following effect vide its order dated April 15,2015 that the Department is entitled to take out appropriate proceedings for recovery of any statutory dues from the transferor or transferee or any other person who is liable for payment of such tax dues, the said protection be afforded is granted. With the above observations, the petition stands allowed and the scheme of amalgamation is sanctioned."

10. VALUATION REPORT

10.1. The Learned Counsel for the Petitioner Companies invited the attention of this Tribunal to the Valuation Report obtained from, one R. Rajagopal & Co., Registered Valuer dated 23.05.2016 and the wherein it has been recommended by the independent Registered Valuer and the same is placed at ***Annexure K*** in respect of Transferor Companies (1 to 3) and ***Annexure L*** in respect of Transferor Company

11. ACCOUNTING TREATMENT

11.1. The Learned Counsel for the Petitioner Companies have stated that the Statutory Auditors of the Petitioner Companies have examined the Scheme and has certified that the Petitioner Companies have complied with proviso to Section 230 (7) / Section 232 (3) and the Accounting Treatment contained in the

proposed Scheme of Arrangement is in compliance with the Applicable Indian Accounting Standards. The Certificates issued by the Statutory Auditors certifying the Accounting Treatment of the Petitioner Companies are placed at *'Annexure N'* of the Transferor Companies (1 to 3) Petition typeset and *'Annexure O'* of the Transferee Company Petition typeset.

12. OBJECTIONS TO THE SCHEME

12.1. It is seen that a preliminary objection against the sanctioning of the Scheme of Amalgamation was filed by the Shareholders viz. Rajendran Kumar Kanodia vide Diary No. 421 dated 06.02.2018. The said shareholders have also filed petitions in CP Nos. 59 and 60 of 2017 under sections 59, 241 and 242 of the Companies Act, 2013 seeking almost the same relief. This Company Petition was heard along with CP/50/2017 and CP/60/2017 along with the objections of the shareholders in CP Nos. 59 and 60 of 2017. However, the counsel appearing for the said objector has revoked the vakalath on the ground that there are no instructions and filed a memo to the said effect vide Diary No. 3912 dated 28.06.2022. Hence, the CP Nos. 59 and 60 of 2017 was

dismissed by this Tribunal on 14.12.2022. Thereafter, this Company Petition was taken up for final hearing.

12.2. In the present case also, it is seen that none appeared on behalf of the objector to prosecute the objections filed by them and they have abandoned the same. Hence, under these circumstances, the objections raised by the shareholder viz. Rajendran Kumar Kanodia should be taken as no objection.

13. OBSERVATIONS OF THIS TRIBUNAL

13.1. After analysing the Scheme in detail, this Tribunal is of the considered view that the scheme as contemplated amongst the petitioner companies seems to be *prima facie* beneficial to the Company and will not be in any way detrimental to the interest of the shareholders of the Company. Considering the record placed before this Tribunal and since all the requisite statutory compliances having been fulfilled, this Tribunal sanctions the Scheme of Amalgamation appended at *"Annexure D"* of the Transferor Companies (1 to 3) and Transferee Company to the typed set filed along with the Company Petition as well as the prayer made therein.

13.2. The Learned Counsel for the Petitioner companies submitted that no investigation proceedings are pending against the Transferor or Transferee Companies under the provisions of the Companies Act, 1956 or the Companies Act, 2013 and further the CP Nos. 59 and 60 of 2017 filed against the Applicant Companies under Section 59, 241 and 242 of the Companies Act, 2013 was dismissed for non-prosecution by this Tribunal vide its order dated 14.12.2022.

13.3. Notwithstanding the above, if there is any deficiency found or, violation committed qua any enactment, statutory rule or regulation, the sanction granted by this Tribunal will not come in the way of action being taken, albeit, in accordance with law, against the concerned persons, directors and officials of the petitioners.

13.4. While approving the Scheme as above, it is clarified that this order should not be construed as an order in any way granting approval of the said loan assignments and exemption from payment of stamp duty, taxes or any other charges, if any, payment is due or required in accordance with law or in respect to

any permission/compliance with any other requirement which may be specifically required under any law.

14. THIS TRIBUNAL DO FURTHER ORDER:

(i) That all properties, right and interest of the Transferor Companies (1 to 3) shall, pursuant to section 232(3) of the Companies Act,1956 without further act or deed be transferred to and vest in or be deemed to have been transferred and vested in the Transferee Company.

(ii) That all the liabilities, powers, engagements, obligations and duties of the Transferor Companies (1 to 3) shall pursuant to Section 232(3) of the Companies Act, 2013 without further act or deed be transferred to the Transferee Company and accordingly the same become the liabilities and duties of the Transferee Company.

(iii) That the Appointed Date for the scheme shall be **1st April 2015** as mentioned in ***Clause 1.2 of Part-I*** of the Scheme.

(iv) That all proceedings now pending by or against the Transferor Companies (1 to 3) be continued by or against the Transferee Company.

(v) That all the employees of the Transferor Companies (1 to 3) in service on date immediately preceding the date on which the Scheme finally takes effect shall become the employees

of the Transferee Company without any break or interruption in their service.

(vi) That the Transferee Company do without further application allot to such members of the Transferor Company, as have not given such notice of dissent, as is required by ***Section 10 of Part II of the Scheme*** herein, the shares in the Transferee Company to which they are entitled under the said Scheme.

(vii) That the Transferee Company shall file the revised Memorandum and Articles of Association with the Registrar of Companies, concerned and further make the requisite payments of the differential fee (if any) for the enhancement of authorized capital of the Transferee Company after setting off the fees paid by the Transferor Companies (1 to 3).

(viii) That the excess of assets over the liabilities after considering issue of share capital would be credited to 'Capital Reserve' of the Transferee company and not to the 'Amalgamation Reserve'.

(ix) That the Transferor Companies (1 to 3) and the Transferee Company, shall within thirty days of the date of receipt of this order cause a certified copy of this order to be delivered to the Registrar of Companies for registration and on such

certified copy being so delivered, the Transferor Companies (1 to 3) shall be dissolved without winding up and the Registrar of Companies shall place all documents relating to the Transferor Companies (1 to 3) registered with him on the file kept by him in relation to all the Transferee Company and the files relating to all the said companies shall be consolidated accordingly.

(x) That any person or statutory or other authority interested shall be at liberty to apply to the Tribunal in the above matter for any directions that may be necessary.

15. Accordingly, the Company Petitions stands **allowed** on the aforementioned terms.

-Sd-

SAMEER KAKAR
MEMBER (TECHNICAL)

-Sd-

JUSTICE RAMALINGAM SUDHAKAR
PRESIDENT